

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Daniel Giansante	Team: Squad #14	CCRB Case #: 201601581	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 02/25/2016 6:33 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 8/25/2017	Precinct: 32
Date/Time CV Reported Fri, 02/26/2016 4:36 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 02/26/2016 4:36 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Jessica Riveracaicedo	7895	925989	WARRSEC
2. POM Christian Martinez	10068	944774	WARRSEC

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM James Quirk	20048	951100	WARRSEC

Officer(s)	Allegation	Investigator Recommendation
A . POM Christian Martinez	Abuse: Police Officer Christian Martinez entered § 87(2)(b) in Manhattan.	A . Unsubstantiated
B . DT3 Jessica Riveracaicedo	Discourtesy: Detective Jessica Riveracaicedo spoke discourteously to § 87(2)(b) and § 87(2)(b)	B . Unsubstantiated

Case Summary

On February 26, 2016, § 87(2)(b) filed the following complaint by phone with the CCRB.

On February 25, 2016, at approximately 6:33 p.m., Police Officer Christian Martinez, Detective Jessica Rivera-Caicedo, and other members of the Manhattan Warrant Squad, arrived at § 87(2)(b) in Manhattan. PO Martinez had two active I-cards with probable cause to arrest § 87(2)(b) no longer resided at the apartment, which belonged to his parents, § 87(2)(b) and § 87(2)(b) and § 87(2)(b) were not home at the time, but § 87(2)(b) and three of their daughters were home. § 87(2)(b) and § 87(2)(b) told § 87(2)(b) to answer the door when PO Martinez knocked. PO Martinez spoke to § 87(2)(b) for a few minutes and allegedly showed her a photograph of § 87(2)(b), a man who lives in another apartment in the building. PO Martinez then said he had to check inside the apartment and allegedly entered by pushing the door against § 87(2)(b) and walking past her (**Allegation A**). Det. Rivera-Caicedo and other officers entered behind PO Martinez.

Det. Rivera-Caicedo was among the officers who eventually found § 87(2)(b) hiding in a closet. She allegedly said, “He scared the shit out of me,” in response to finding § 87(2)(b) (**Allegation B**). § 87(2)(b) arrived while the officers were still inside the apartment and became irate. § 87(2)(b) was not present until the officers were escorting § 87(2)(b) out through the building lobby, but she heard some of the incident by phone after one of her daughter’s called her. The officers transported § 87(2)(b) to the 45th Precinct stationhouse, where he was arrested in relation to one of the I-cards (BR01).

No video footage of the incident was obtained.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(g)
- On August 30, 2016, the NYC Comptroller’s office confirmed that no Notice of Claim was filed regarding the incident (BR02).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB case involving § 87(2)(b) and § 87(2)(b) (BR04).
- PO Christian Martinez has been a member of the NYPD for nine years and has had 15 previous CCRB allegations involving eight cases with no substantiated allegations (see officer history).
- Det. Jessica Riveracaicedo has been a member of the NYPD for 16 years and has one previous CCRB allegation which was not substantiated (see officer history).
- § 87(2)(g)

Potential Issues

- § 87(2)(b) and § 87(2)(b) had no forms of identification when they arrived at the CCRB to be interviewed on February 29. They signed verification forms, but without any way to verify the § 87(2)(b) identities, the undersigned could not approve those forms as a Commissioner of Deeds. The undersigned later personally gave new verification forms to § 87(2)(b) who promised to have them signed and notarized but later lost them. The undersigned then mailed new verification forms to § 87(2)(b) but he failed to retrieve them from the post office. Despite lengthy and numerous attempts, the undersigned was unable to successfully contact § 87(2)(b) and § 87(2)(b) again or to have them produce notarized verification forms. As a result, the statements made by § 87(2)(b) and § 87(2)(b) are considered unsworn.

Findings and Recommendations

Allegations not pleaded

- **Discourtesy:** § 87(2)(g) § 87(2)(b) alleged overhearing a discourteous statement in the background while she was on the phone with her daughter, but she was not present and none of the individuals who were present in the apartment recounted hearing the same discourteous statement. § 87(2)(b) made a discourtesy allegation in his phone statement which he did not allege in his in-person statement, and also alleged that a discourteous statement was made to § 87(2)(b) which she did not corroborate. § 87(2)(b) alleged that a discourteous statement was made to § 87(2)(b) and § 87(2)(b) but neither of them corroborated that allegation. § 87(2)(b) made numerous discourtesy allegations but failed to provide a sworn statement, § 87(2)(g)

- **Allegation A—Abuse of Authority: Police Officer Christian Martinez entered § 87(2)(b) in Manhattan.**

It is undisputed that officers entered the apartment, and that PO Martinez was the investigating officer and the first officer to enter the apartment. It is also undisputed that officers did not possess an arrest or bench warrant for anyone living in the apartment.

§ 87(2)(b) recounted that § 87(2)(b) came to her room and told her to answer the apartment door (BR05). She approached the door alone and asked who was there. Officers announced themselves and § 87(2)(b) opened the door. PO Martinez asked her who else was home with her, and she told him that her older brother, her two sisters, and her niece were in the apartment. She told PO Martinez that her brother was named § 87(2)(b) PO Martinez showed § 87(2)(b) a piece of paper with the word “Wanted” on it and a photograph of a man

named § 87(2)(b) who lives on the § 87(2)(b) of § 87(2)(b)'s building. PO Martinez asked § 87(2)(b) if § 87(2)(b) was in her apartment and she told him that he was not. PO Martinez told her that he had to check inside the apartment because § 87(2)(b) indicated that he lived there and § 87(2)(b) had said a man was inside. PO Martinez allegedly pushed the door open and walked inside. § 87(2)(b) said that the door was “pretty wide open” already when she was speaking to PO Martinez, but that nonetheless the door touched her and moved her as PO Martinez pushed it open. She denied that PO Martinez ever asked her if he could enter the apartment. No one else ever spoke to the officers at the door. § 87(2)(b) did not say anything to the officers as they entered.

None of the other civilians recounted seeing the exchange between § 87(2)(b) and PO Martinez at the apartment door. § 87(2)(b) said that § 87(2)(b) provided an account of the incident to her shortly afterward, § 87(2)(g) (BR06). § 87(2)(b) recounted that shortly after officers entered, § 87(2)(b) came to her crying and said that an officer “bum-rushed” her at the door (BR07).

PO Martinez testified that he came to the location because he had two I-cards for § 87(2)(b) with the § 87(2)(b)'s apartment stated as his residence (BR08; BR09). He recounted that a “young lady” opened the apartment door. He never learned her name. PO Martinez viewed photographs of § 87(2)(b) and § 87(2)(b) and said that the woman to whom he spoke could have been § 87(2)(b) or § 87(2)(b). § 87(2)(g) PO Martinez insisted that the woman to whom he spoke at the door did not appear to be a minor. When asked again if the woman definitely appeared to be at least 18 years old, PO Martinez said, “I don’t want to estimate her age, but I held an adult conversation with her. Our dialogue—you know, it wasn’t like she wasn’t understanding what I was saying.”

PO Martinez asked § 87(2)(b) for the last name of the people who lived in the apartment, and she told him § 87(2)(b). He asked her who was home and she said her brother and her sisters. He asked for her brother’s name and she said, § 87(2)(b). PO Martinez showed § 87(2)(b) an I-card with § 87(2)(b) photograph and she identified him as her brother. PO Martinez asked § 87(2)(b) where § 87(2)(b) was, and she pointed to a room that was behind her and to the right while saying, “He’s in his room right there.” PO Martinez said that he needed to speak to § 87(2)(b) and § 87(2)(b) invited him inside the apartment. PO Martinez could not recall § 87(2)(b)'s exact words, but said she said something to the effect of, “That’s his room back there. He’s in his room. Come in.” § 87(2)(b) also opened the door fully and stepped backwards into the apartment. Upon entering, PO Martinez stopped briefly to show § 87(2)(b) a warrant for § 87(2)(b) (BR10). PO Martinez brought the warrant because it listed § 87(2)(b) as living elsewhere in the building, and he asked § 87(2)(b) if she recognized § 87(2)(b). She told him that § 87(2)(b) lived on the § 87(2)(b).

Det. Riveracacedo recounted that she stood behind PO Quirk, who stood behind PO Martinez, when the officers knocked on the apartment door (BR11). As a result, her view of PO Martinez’s conversation with § 87(2)(b) was largely obscured. She believed that the woman with whom PO Martinez spoke was definitely at least 18 years old. She viewed photographs of § 87(2)(b) and § 87(2)(b) and could not say if she recognized any of them as the woman who answered the door. Det. Riveracacedo could not recall the contents of PO Martinez’s conversation with § 87(2)(b) but she believed that § 87(2)(b) verbally invited PO Martinez to enter the apartment. She could not recall the words § 87(2)(b) used to invite

PO Martinez inside. Det. Riveracaicedo recounted that the apartment door was wide open and denied that PO Martinez pushed it open to enter the apartment.

PO Quirk described the person who answered the door as a “girl” who was possibly teenaged (BR12). He could not say if she appeared to be under 18 years of age. He also recounted that § 87(2)(b) verbally invited PO Martinez inside but could not recall her exact words. He recounted that § 87(2)(b) walked away from the doorway and into the apartment ahead of the officers as they entered. He denied that PO Martinez pushed open the door to enter.

§ 87(2)(g)

It is well established that, with regard to officers’ entry into a private residence, voluntary consent is one of the limited exceptions to the warrant requirement. People v. Gonzalez, 39 N.Y.2d 122 (1976) (BR13).

§ 87(2)(g)

§ 87(2)(b). Therefore it is recommended that **Allegation A** be closed as **unsubstantiated**.

• **Allegation B—Discourtesy: Detective Jessica Riveracaicedo spoke discourteously to** § 87(2)(b)

§ 87(2)(b) **and** § 87(2)(b)

§ 87(2)(b) alleged that she heard Det. Riveracaicedo yelling and using profanity during and after the time that the officers discovered § 87(2)(b) in a bedroom closet. Det. Riveracaicedo kept saying that § 87(2)(b) had frightened her. § 87(2)(b) recalled hearing Det. Riveracaicedo using what she called “the S-word” and “the F-word.” However, the only specific profane statement she could recall hearing Det. Riveracaicedo say was: “He scared the shit out of me.”

§ 87(2)(b) recounted hearing Det. Riveracaicedo yelling, “Why the fuck was he hiding in the closet? I don’t fucking understand this. That’s so fucking stupid” (BR14). She asserted that Det. Riveracaicedo directed these statements at § 87(2)(b) and § 87(2)(b) in their bedroom, but said she could hear it from her position out of sight in the living room.

§ 87(2)(b) recounted that Det. Riveracaicedo was startled when she saw him in the bedroom and said, “Oh what the fuck?” (BR15). He did not spontaneously recount Det. Riveracaicedo saying that he had “scared the shit” out of her, but when asked if Det. Riveracaicedo ever made that statement, § 87(2)(b) said that she did so while he was getting dressed in the living room.

§ 87(2)(b) denied hearing any officer use profanity during the incident (BR07).

Det. Riveracaicedo denied using any profanity during the incident, and specifically denied making any of the alleged statements. PO Martinez and PO Quirk both denied hearing Det. Riveracaicedo make the alleged statement.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore it is recommended that **Allegation B** be closed as **unsubstantiated**.

Squad: 14

Investigator:	_____	<u>Daniel Giansante</u>	_____
	Signature	Print	Date

Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date